[Public Land Order 1670]

[78585]

UTAH

PARTIALLY REVOKING THE DEPARTMENTAL ORDER OF JANUARY 9, 1907

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Departmental order of January 9, 1907, which withdrew lands in Utah for use of the Forest Service, Department of Agriculture, for ranger station purposes, is hereby revoked so far as it affects the following-described lands:

SALT LAKE BASE AND MERIDIAN

PARK STATION

T. 31 S., R. 5 E.,
40 acres in unsurveyed Section 24.

2. The lands are within the Dixie National Forest, and shall be open, subject to valid existing rights and the requirements of applicable law, to such applications, selections, and locations as are permitted on national forest lands, effective at 10:00 a. m., on August 2, 1958.

ROGER ERNST,
Assistant Secretary of the Interior.

JUNE 27, 1958.

[F. R. Doc. 58-5076; Filed, July 2, 1958; 8:46 a. m.]

[Public Land Order 1671]

[Anchorage 033833]

ALASKA

RESERVING LANDS FOR USE OF PUBLIC HEALTH SERVICE AS AN ADDITION TO THOSE RESERVED BY PUBLIC LAND ORDER NO. 826 OF MAY 15, 1952, FOR ARCTIC HEALTH RESEARCH CENTER

By virtue of the authority vested in the President by section 1 of the act of March 12, 1914 (38 Stat. 305, 307; 48 U. S. C. 303) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands in Alaska are hereby reserved for use of the Public Health Service, Department of Health, Education, and Welfare, as an addition to the Arctic Health Research Center:

ANCHORAGE AREA

U. S. Survey No. 408, East Addition—Original Townsite

Block 31-B, lots 1 to 8, inclusive.

The tract described contains 1.43 acres.

2. Executive Order No. 2242 of August 31, 1915, reserving the above-described lands, together with other lands, for townsite purposes, and other purposes in connection with the construction and operation of railroad lines, is hereby modified to the extent necessary to permit the reservation made by paragraph 1 of this order to become effective.

ROGER ERNST,
Assistant Secretary of the Interior.

JUNE 27, 1958.

[F. R. Doc. 58-5077; Filed, July 2, 1958; 8:46 a. m.]

[Public Land Order 1672]

[Fairbanks 010087, 58366]

ALASKA

WITHDRAWING LANDS FOR USE OF DEPARTMENT OF AIR FORCE FOR MILITARY PURPOSES

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described lands in Alaska are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and the act of July 31, 1947 (61 Stat. 681; 30 U. S. C. 601-604) as amended, and reserved for use of the Department of the Air Force:

TRACT A

Beginning at a point on the east boundary of "Planet Lode," U. S. M. Survey No. 336 from which U. S. L. M. 336 bears N. 33° W., 1270.8 feet and N. 84°29' E., 4019.5 feet and thence
North, 250 feet;
N. 66°45' E., 220 feet;
S. 48°20' E., 3,120 feet to a point on longitude 167°59' W.;
East, 5,000 feet to a point on longitude 167°57' W.;
South, 950 feet along said longitude;
West, 1,650 feet;
S. 12°10' W., 1,580 feet following the west boundary of the "Beach Western Extension Claim" and continuing to a point in the line of mean high tide of Bering Sea;
Westerly, 2,400 feet, approximately, along line of mean high tide;
Southerly, 1,300 feet, approximately, along line of mean high tide;
North, 2,550 feet;
N. 48°20' W., 3,350 feet to a point on longitude 168°00' W.;
North, 123 feet;
N. 55°47' E., 61 feet to corner No. 1 of "Planet Lode";
N. 33°00' W., 100.6 feet to point of beginning.
The tract described contains 257.7 acres.

TRACT D

Beginning at the point of intersection of longitude 167°55'30" W. with the line of mean high tide of Bering Sea, thence
North, 5,000 feet;
East, 500 feet;
North, 1,000 feet;
East, 2,000 feet to a point on longitude 167°54'30" W.;
South, 7,000 feet along said longitude to a point on the line of mean high tide of Bering Sea;
Northwesterly, 2,800 feet approximately, along line of mean high tide to point of beginning.
The tract described contains approximately 365 acres.

The total area described in this order is approximately 622.7 acres.

ROGER ERNST,
Assistant Secretary of the Interior.

JUNE 27, 1958.

[F. R. Doc. 58-5078; Filed, July 2, 1958; 8:46 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 12295; FCC 58-620]

PART 10—PUBLIC SAFETY RADIO SERVICES

PART 11—INDUSTRIAL RADIO SERVICES

PART 16—LAND TRANSPORTATION RADIO SERVICES

CHANGE IN EFFECTIVE DATE OF CERTAIN TECHNICAL STANDARDS

In the matter of amendment of Parts 10, 11, and 16 of the Commission's rules to change the effective date of narrowband technical standards in the 25-50 and 152-162 Mc bands; Docket No. 12295.

1. *Introduction.* The Commission adopted, on January 22, 1958, a Notice of Proposed Rule Making in the above-entitled proceeding. This Notice of Proposed Rule Making was published in the FEDERAL REGISTER of January 29, 1958 (23 F. R. 598), and ample opportunity was afforded interested persons to submit comments in support of or in opposition to the rule amendments proposed. The time for filing of both original and reply comments in regard to the proposed rule changes has now expired.

A substantial number of comments were filed in this proceeding by organizations representing large numbers of users, by individual users, and by other interested parties. Although all comments are not individually discussed herein, every properly filed comment has been considered and the merits thereof given appropriate weight by the Commission in reaching its determinations.

The Commission's primary purpose in initiating this proceeding was to provide maximum opportunity for early utilization of newly assignable frequencies made available as a result of the Commission's decision in Docket Numbers 12169 and 11253 reducing the frequency separation between assignable frequencies in the 25-50 Mc and 152-162 Mc bands.

In order to effectuate the above-stated purpose, the Commission proposed:

(a) To make all "split-channels" in those portions of the 25-50 Mc and 152-162 Mc bands allocated to Public Safety, Industrial, and Land Transportation Radio Services, created by reduction of the frequency separation between assignable frequencies, available for immediate assignment.

(b) To provide that all new radio communications systems licensed in the Public Safety, Industrial, and Land Transportation Radio Services subsequent to the effective date of the pro-

posed rules would be allowed to use only that equipment which meets the technical specifications prescribed in Docket Number 11253.[1]

(c) In those instances where the Commission's rules governing the particular service involved require coordination, to require that assignment of frequencies in the 25–50 Mc and 152–162 Mc bands including "split channels", be made only where coordination has been effected with respect to all stations in the same or other services located in the same area and authorized to operate within 30 kc of the requested frequency or frequencies.

(d) To permit continued use of equipment not meeting the "narrow-band" standards without cut-off date provided:

(1) The equipment shall have been placed in use prior to the effective date of this proposed action, or shall have been added to an existing radio communications system which was authorized prior to the effective date of this proposed action; and

(2) Whenever interference is caused to stations complying with the narrow-band technical standards by the operation of stations using equipment not meeting those standards, the deviation of such non-complying transmitting equipment shall be reduced to the point that the bandwidth occupied by the emission of the station plus an allowance for the frequency tolerance of the equipment does not exceed the bandwidth specified in the narrow-band technical standards. Licensees of both narrow-band equipment and wide-band equipment modified as above shall thereafter accept any residual interference encountered.

2. *Comments filed.* The great majority of those comments which opposed adoption of the proposed amendments were filed by police radio service users or by associations of such users.[2]

The Commonwealth of Virginia, Department of State Police, in opposing the proposed amendments stated:

> The Virginia Department of State Police feels that the proposals of this docket would impose undue hardships on many tax supported police agencies.
>
> Many of the large area agencies will redesign their systems in order to compensate for the coverage lost by changing from 40 kc to 20 kc channels. These same agencies will find it necessary to replace equipment which is not practical to convert to narrow band. Practically all agencies will have to replace crystals.
>
> Since all are tax supported agencies, the necessary funds must be appropriated by the governing body. For state agencies this means that the money must come from the legislature which, in many cases, meets every two years. Docket 12295 was not announced in time for these agencies to include the necessary funds in their budget which was presented to the 1958 legislature.
>
> For the above reason, many departments cannot ask for necessary funds until their legislature meets in 1960. It is well known that after funds are available, it will take considerable time to effect all the changes necessary.
>
> The Virginia Department of State Police, therefore, feels that the Commission's approach is unrealistic; that all present users should be protected until November 1, 1963, and that the proposed amendments, as set forth in this docket, should not be adopted.

Further arguments in opposition to the Commission's proposals are typified by the comments of the Indiana State Police, which read, in part, as follows:

> In our state, as in many others, the Police Services provide the only full-time, full-emergency communication service. The Indiana Police Net is comprised of each and every police radio station in the state. This highly integrated network performs extremely valuable service to law enforcement activities every day. During times of emergency, whether due to natural disaster or a national emergency, this network would be of even greater importance to the citizens of the State of Indiana.
>
> Any action which would affect efficient operation of the system definitely would not be in the public interest.
>
> In as far as the Police Services in Indiana are concerned, any new police system using narrow-band equipment could not participate in the state-wide network, due to incompatible equipment standards. The changeover to narrow-band operation must be on a state-wide basis with an overall plan coordinating the change among all police agencies. It is for this reason, we believe that any new police licensee planning to operate in an existing network should not be designated as a new system under the proposed rules.

In addition, the comment of the Oregon State Highway Department represents another argument in opposition to the Commission's proposal. This comment states, in part:

> We have conducted tests to determine relative system efficiency under "wide band" and "narrow band" modes of operation. These tests, and reports of similar tests by others, have proven to us that a definite degradation of service will result from "narrow band" operation. Our coverage to mobile units will be decreased by as much as 15 percent in many critical areas, requiring establishment of many new remote station sites and mobile repeaters if coverage is to be restored to that now enjoyed. Those costs must also be considered.
>
> * * * * *
>
> Tentative allocations made for the new Business Radio Service under Docket No. 12169 places a channel for this service on the frequency 42.96 Mc, the adjacent split channel to the frequency 42.94 Mc, which is currently used under the A. P. C. O. geographical assignment plan by Utah, Oregon and Nevada State Police or organizations. There is no doubt that intolerable interference would be caused to these State agencies immediately upon release of this frequency to licensees qualifying in the Business Radio Service. Paragraph 5 (b) of Docket 12295, if adopted, would require the State agencies to immediately protect small business users, with no protection to the States from interference detrimental to their operation in the public interest and necessity.

Comments supporting adoption of the proposed amendments were filed by a substantial number of parties[3] and, in contrast to those opposing the proposed amendments, come from a wide variety of users. Many of the comments echo the arguments of the Communications and Radio Committee of the American Municipal Association which reads, in part, as follows:

> * * * The Committee feels that postponing the effective date until 1963 will preclude the utilization of any "split" channels until that date. The radio spectrum as assigned to the Public Safety, Industrial, and Land Transportation Radio Services is much too valuable a natural resource to have outmoded restrictions due only to a desire to retain obsolete equipment for more than a five year period. This is forcing proposed users to either come under other portions of the rules and regulations which are not acceptable or logical services but also, would inhibit the use of the radio spectrum by local governments in the necessary operation of their day to day functions. Equipment presently in use and equipment purchased since 1955 permits conversion to narrow band transmission. The only possible interference to this type of newer equipment would be from wide band receivers which undoubtedly have been amortized over the years and therefore should be replaced.
>
> In some areas even adjacent channels on 60 kilocycle spacing are being assigned geographically due to the utilization by licensees of outmoded 120 kilocycle equipment. This is equipment which is within the limits of deviation permitted by the Commission for transmitting but does not have the necessary selectivity in receiving that is required of the present 60 kilocycle stations. As a result the various services are suffering from an overcrowding in some channels and a lack of complete utilization in other channels.
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> * * * * *

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[1] Hereinafter referred to as narrow-band standards.

[2] The cities of Burbank (California), Holyoke (Massachusetts), Portland (Oregon), Seattle (Washington); the County of Clakamus, Oregon; the State Police of Indiana, Kentucky, Oregon and Virginia; the Oregon State Highway Department; the State Highway Patrols of Ohio and Missouri; the National and Northwest Chapters of the Associated Police Communication Officers and the Indiana, Missouri and Ohio State Chapters; the Los Angeles Police Department; the Eastern States Police Radio Relay League, Inc.; the Cuyahoga County (Ohio) Police Chiefs Association, Inc.; the International Association of Chiefs of Police; the Peoples Cab Company; the Radio Flash Corporation; and the Southern California Radio Taxicab Association. In addition a number of individual letters in support of the foregoing comments were received after the time allowed for the submission of comments in this proceeding.

[3] Aeronautical Radio, Inc.; American Municipal Association; Association of American Railroads; California Public-Safety Radio Association; Central Committee on Radio Facilities of the American Petroleum Institute; City of San Diego; Communications Engineering Company; County of San Diego; Electronic Industries Association; Forest Industries Radio Communications; Forestry Conservation Communications Association; General Electric Company; Hawaiian Sugar Planters Association; International Municipal Signal Association; Robert LaRue; National Committee for Utilities Radio; National Ready Mixed Concrete Association; National Sand and Gravel Association; Pineapple Growers Association of Hawaii; and Special Industrial Radio Service Association. In addition to the foregoing, the Caterpillar Tractor Company requested clarification of terms and conditions in the proposed rules with respect to interference between stations; the Wisconsin Chapter of the Associated Police Communications Officers filed a Resolution offering to extend the services of its Frequency Advisory Committees to all existing and prospective Wisconsin licensees of radio communications systems in the Public Safety Radio Services; and the Electronic Industries Association filed comments and certain technical data which had been requested by the Notice in this proceeding.

* * * Present 60 kilocycle equipment normally can be modified without any serious problems. The old 120 kilocycle equipment should have been written off years previously as inefficient and out of date. We feel that radios are similar to automobiles and that they should be replaced on the basis of a "wearout" of not more than 8 years duration. Radio users should plan for this. On a performance type budgeting or capital equipment type budget funds should be available for such replacement of equipment within a normal wearout period.

The comment of the City of San Diego in supporting the proposals stated:

This is an appropriate time for most users to change their mobile radio equipment to meet the new narrow-channel standards inasmuch as we are going through a transition period of replacing automotive vehicles having 6 volt electrical systems with 12 volt systems. Since the old radios in many cases can only be modified to the 12 volt at considerable expense, this would seem to be a proper time to purchase new equipment.

The comments of the County of San Diego in support of the Commission's proposal contained the following contention:

It would appear that the request for comments by present users would not necessarily be the criterion upon which a decision of this nature should be made. We believe if a poll were taken of the non-users who cannot now use radio for communications because of the lack of frequency assignments, they would vote unanimously in favor of immediate action. It does not appear that we, who are now users and have enjoyed the privilege of radio communications for many years, should, by our selfish interest, deny an equal privilege to those who have the need equal to the present users, by requesting your Commission to delay the requirement of meeting the new narrow-band standards.

A large number of the comments received in this proceeding emphasize the difficulty which the frequency advisory committees and the Commission may expect if the users of "wide-band" equipment are permitted to continue the transmission of "wide-band" signals until cases of interference to adjacent "narrow-band" installations are identified, investigated and adjudicated, and recommend the establishment of a specific date beyond which all "wide-band" transmitters will be limited to a narrow-band modulation deviation. The suggested limits of such modulation deviation vary from ±5 kc to ±10 kc, and the suggested time to be allowed for that action varies from six months after Commission action in this matter to the previous cut-off date of November 1, 1963. The arguments of the National Committee for Utilities Radio are typical and read, in part, as follows:

* * * if the only time a broad-band user is required to reduce the modulation deviation of his transmitting equipment is in the event he interferes with a narrow-band adjacent channel user, NCUR believes that the result will be confusion, intolerable interference in many cases and serious hindrance in the utilization of the new "split channel" frequencies. Additionally, the lack of a uniform modulation limit during the transition period will make the work of the Frequency Advisory Committees exceedingly difficult.

The comment of the Special Industrial Radio Service Association states in part:

The three problems which cause us concern under this proposal are: (1) It would appear that if an existing user employing equipment not meeting the new narrow-band technical standards were to move to a split channel adjacent to another user employing non-complying equipment, neither would be required to protect the other since neither would be complying with the narrow-band technical standards and the proposal only envisions the necessity for reducing deviation where "interference is caused to stations complying with the narrow-band technical standards." (2) It is not clear from the Commission's proposal whether the word "interference" in paragraph 5 (b) will be interpreted to apply only to local interference, or is broad enough to require a reduction in deviation by one operating broad-band equipment who is giving interference to a user employing narrow-band equipment on an adjacent split-channel as a result of so-called "skip" or sky-wave propagation. (3) It would appear that the absence of any cut-off date whatsoever would not be conducive to the standardizing of equipment in prompt order, and could lead to interminable delay in such standardization despite the Commission's urging in paragraph 7 of its Notice to the effect that "all licensees (should) modify or replace all wide-band equipment as rapidly as possible to conform with narrow-band technical standards."

Other questions raised by comments received in this proceeding and on which definitive action was recommended by one or more interested parties, include the following:

(a) Whether present users of "wide-band" equipment would be permitted to move to and use that equipment on the new "split channel", and if so under what circumstances.

(b) Whether the user of "wide-band" equipment on a given frequency would be required to reduce the modulation deviation of his transmitting equipment if interference developed to the user of "narrow-band" equipment on the same frequency.

(c) Whether the term "interference" is to be interpreted to include so-called "nuisance interference" or "monkey chatter" which is only heard when the desired signals are off the air, and thus do not actually interfere with desired communications.

The Electronic Industries Association (EIA) submitted a summary of technical data resulting from a joint industry-wide study of the areas of interference involved when older type wide-band equipment and newer narrow-band equipment are operated on adjacent narrow-band frequencies, as requested in paragraph 6 of the Notice of Proposed Rule Making, and in addition submitted, in part, the following comments:

It is an ideal objective to implement a program so that existing users do not have to convert systems unnecessarily or make unscheduled modifications. However, the Associations' study discloses that for technical reasons it is impractical to encourage co-channel or adjacent channel operation of intermixed systems of 5 and 15 kc deviation.

It is the industry's experience that in cases where 5 kc systems have been installed, useable communications could not be attained due to destructive interference from co-channel 15 kc users. Many such 5 kc systems were replaced with 15 kc equipment because of this interference.

In addition to the co-channel problem, the potential interference that an existing 15 kc system will cause to an adjacent split channel 5 kc receiver must be considered. To this end a system study shows that part of the spectrum of an existing 15 kc transmitter meeting all of the Commission's technical standards, falls within the narrow selectivity of a new split-channel 5 kc receiver, 20 kc removed from the 15 kc station. Sufficient geographic spacing will minimize interference on a local area basis. However, the probability of skip interference aggravates the problem.

From an operational standpoint, as reported by JTAC, and subsequent studies, it is apparent that the coverage of existing wide-band 15 kc systems is not materially affected if all transmitters are reduced to a maximum 5 kc deviation. Although the signal-to-noise ratio remains almost the same, the audio level is reduced about 10 db.[4] Therefore, it would be in the user's interest to reduce the deviation of all units in his system over as short a period of time as possible. This reduction can be accomplished during routine servicing with little or no cost to the user.

3. *Findings.* The comments reveal that the only outright opposition to the major premise[5] underlying this proceeding came from the Police and Taxicab Radio Service users. The bulk of such outright opposition was interposed by Police Radio Service users. The primary argument of these parties is that adoption of rules necessary to effectuate this premise would require "many of the large area agencies" to "redesign their systems in order to compensate for the coverage lost by changing" to the narrower channels and that the necessary public funds cannot be procured immediately. These parties further contend that assignment of the "split channels" prior to the date when all equipment would, by rule, be required to comply with "narrow-band" standards would, nevertheless, as a practical matter, require individual licensees to comply with such standards at the time that "split channels" adjacent to the frequency being used are assigned to stations operating in the same area.

The Commission recognizes that tax supported users require substantial time in which to procure the funds that would be required to bring all their equipment into conformity with the "narrow-band" standards promulgated by the decision rendered in Docket Number 11253. However, the Commission believes that this problem can be substantially alleviated by allowing users to continue utilization of present equipment for a specific time, subject to the condition that the modulation frequency[6] deviation of such equipment is reduced to the point where it does not exceed the deviation specified

[4] The JTAC report to which reference was made by the EIA, includes the following notations: "The audio volume drops off approximately 10 db, but in the average case, the intelligibility of the desired signal is not degraded. Most receivers have sufficient reserve audio gain to take up this difference."

[5] That the Commission's rules should provide for immediate assignment of "split channels" in the 25–50 Mc and 152–162 Mc bands without protecting present users of the so-called "primary" channels from interference which may be caused by stations operating on such split channels.

[6] Hereinafter referred to as "deviation" or "frequency deviation."

in the narrow-band standards, as is provided above. The Commission believes that the benefits derived from making the "split channels" in the 25–50 Mc and 152–162 Mc band immediately available outweigh any disadvantages which presently licensed users of so-called "primary" frequencies may experience. However, in order to further alleviate any burden which may result to existing licensees in the Public Safety Radio Service, "split-channels" allocated to these services will be assigned prior to November 1, 1963, only where it is established either that harmful interference will not be caused to the operation of existing stations or that licensees of all stations in the same area and operating within 30 kc of the requested frequency have concurred with the requested assignment.

Accordingly, "split-channels" in the 25–50 Mc band and in the 152–162 Mc band will be available for assignment upon the effective date of this action as originally proposed. However, "split-channels" allocated to Public Safety Radio Services will be assigned prior to November 1, 1963, only where the application is accompanied by a satisfactory engineering report indicating that harmful interference will not be caused to the operation of existing stations or is accompanied by a statement certifying that all licensees of stations authorized to operate with 30 kc of the requested frequency and located within 75 miles of the proposed station location have concurred with the requested assignment.

The comments filed reveal little opposition to the proposal that would require all new radio communications systems, those licensed subsequent to the effective date of this action, in the Public Safety, Industrial, and Land Transportation Radio Services to utilize only equipment which meets the technical specifications prescribed in Docket Number 11253. However, the comments included requests (a) that licensees of radio communication systems authorized prior to the effective date of this action whose systems must be moved to a different frequency, due to re-allocation of the frequency previously assigned, be allowed to utilize "wide-band equipment" and (b) that "any new police licensee planning to operate in an existing network should not be designated as a new system."

The Commission believes, as hereinbefore stated, that the public interest requires immediate usage of the new frequencies derived from "channel-splitting." Consideration of all information available to it, including the comments filed in this proceeding, causes the Commission to believe that effective usage of such channels can be obtained only by substantial elimination of adjacent channel interference. Furthermore, adoption of the proposal which would require radio communication systems licensed subsequent to the effective date of this action to utilize only "narrow-band" equipment will aid materially in the elimination of such interference. Nevertheless, it appears equitable that those licensees forced to move their operations to different frequencies, due to re-allocation of the frequencies now being used, should be accorded substantially the same right to utilize their present equipment as would be permitted if operation were continued on the same frequency. Accordingly, while the above-stated proposal is being adopted, an exception is being made to allow licensees forced to change frequencies due to a re-allocation of the frequencies presently used, to operate "wide-band" equipment on the frequencies to which they are moved, provided the deviation of such equipment is immediately reduced to the point where it does not exceed the deviation specified in the "narrow-band" technical standards.

With respect to the comments regarding what constitutes a new system, it may be noted that the term "system", as used in the present rules governing the Public Safety, Land Transportation, and Industrial Radio Services, is normally construed to mean the operationally integrated radio facilities of a single licensee that are utilized in rendering a communications service encompassed within the scope of "permissible communications" which stations licensed in the particular radio service may transmit. Adequate reasons for according the term a different meaning in this proceeding have not been adduced by the comments. Therefore, the radio facilities of a new licensee will constitute a new radio communication system even though such licensee may "be planning to operate in an existing network".

The proposal which would provide that assignment of frequencies in the 25–50 Mc and 152–162 Mc bands, including "split-channels", be made, to stations in those services where frequency coordination is required, only after "coordination has been effected with respect to all frequencies assigned to stations in the same or other services within 30 kc" of the requested frequency engendered little adverse comment. However, several parties emphasize that the use of "split channels" should be coordinated by industry frequency advisory committees in all cases. While it may be desirable to employ frequency advisory committees in effecting coordination, such committees do not presently exist for all services. In any event, it is not presently the Commission's policy to require this means of coordination exclusively.

Accordingly, the Commission is adopting the principle that in those instances where the Rules governing the Public Safety, Land Transportation, and Industrial Radio Services require coordination, such coordination shall be effected with respect to all stations in the same or other services located in the same area and authorized to operate within 30 kc of the requested frequency or frequencies.

The Notice of Proposed Rule Making proposed to allow continued use, "without cut-off date", of equipment not meeting the "narrow-band" technical standards in systems licensed prior to the effective date of this action provided that "whenever interference is caused to stations complying with the narrow-band technical standards by the operation of stations using equipment not meeting those standards, the deviation of such non-complying transmitting equipment shall be reduced to the point that the bandwidth occupied by the emission of the station plus an allowance for the frequency tolerance of the equipment does not exceed the bandwidth specified in the narrow-band technical standards. Licensees of both narrow-band equipment and wide-band equipment modified as above shall thereafter accept any residual interference encountered."

Upon consideration of all factors involved, the Commission has concluded that adoption of that part of this proposal which would specify that "the deviation of non-complying transmitters shall be reduced to the point that the bandwidth occupied by the emission of the station plus an allowance for the frequency tolerance of the equipment does not exceed the bandwidth specified in the narrow band technical standards" would result in certain inequities. Compliance with the proposed requirement cannot invariably be met by a simple reduction in frequency deviation unless the frequency stability is also improved which is a relatively expensive procedure. If the proposed requirement were modified to provide only that the deviation of non-complying transmitters be reduced to the point where it does not exceed the deviation specified in the "narrow-band" technical standards (±5 kc) the necessary adjustment of transmitters operating in both the 25–50 Mc and 152–162 Mc bands is a relatively inexpensive operation. Furthermore it appears that adoption of such a requirement will accomplish substantially the same results as would be accomplished by the proposed requirement because it will, in nearly all cases, provide reasonable receiver audio response in "wide-band" receivers utilized in the 25–50 Mc and 152–162 Mc bands, while at the same time avoiding the majority of "adjacent channel" interference problems since it appears that the reduction in modulation frequency deviation will normally result in an emission occupying a bandwidth less than 20 kc. Moreover, information available to the Commission leads it to believe that a large percentage of the transmitters operating in the 25–50 Mc and 152–162 Mc ranges have a frequency stability better than that presently required. Therefore, it appears probable that only in isolated cases will the combination of the transmitter instability and the modulation deviation (at ±5 kc) produce "splatter" in narrow-band receivers on channels 20 or 30 kc removed in the respective bands. In such cases, the Commission will expect cooperative action on the part of all licensees concerned to alleviate any interference caused thereby.

Accordingly, the Commission concludes that the proposal relating to the point to which frequency deviation of "wide-band" transmitters must be reduced should not be adopted. However, the Commission also concludes that a modified version thereof should be adopted which would require that the deviation of non-complying transmitters be reduced to the point where it does not exceed the deviation specified in the "narrow band" standards (±5 kc).

As pointed out above, a number of comments suggest that this proposal be further modified so as to require that the deviation of all "wide-band" transmitters used by radio communications systems licensed in the Public Safety, Land Transportation, and Industrial Radio Services, prior to the effective date of this action be reduced to the point specified above by a specific date rather than requiring that the deviation of such transmitters be reduced only when interference is caused. The comments, in support of this requested modification, allege that "piecemeal" reduction of the frequency deviation as proposed by the Commission is impracticable because such a procedure: "will result in confusion, intolerable interference in many cases and serious hindrance in the utilization of the new split-channel frequencies"; and will impose an intolerable administrative burden on the Commission and industry frequency advisory committees.

The comments of some parties object to the "absence of any cut-off date" on the ground that this situation will act as a deterrent "to the standardizing of equipment in prompt order, and could lead to interminable delay in such standardization."

The Commission is persuaded, upon consideration of all factors involved, that it should not adopt that part of its proposal in the form proposed but should provide a specific date beyond which the use of "wide-band" equipment in systems licensed prior to the effective date of this action will be permitted only if the frequency deviation is reduced to the point where it does not exceed the deviation specified in the "narrow-band" technical standards (±5 kc). The Commission is also persuaded that a cut-off date should be specified beyond which only equipment meeting the "narrow-band" standards may be used.

The Commission believes that the reduction in frequency deviation required can be accomplished, in a large percentage of cases, during routine servicing at a nominal cost to the user. Accordingly, the Commission concludes that a period of six months from the effective date of this action is sufficient to allow existing systems, other than those licensed in the Public Safety Radio Services, to reduce the frequency deviation to the point specified above. In the case of systems licensed in the Public Safety Radio Services the reduction in deviation will not be required until two years from the effective date of this action. Furthermore, the Commission believes that the "cut-off" date beyond which all equipment must comply with the "narrow-band" standards should be that previously specified in Docket Number 11253; namely, October 31, 1963.

Subsequent to the date when the deviation of "wide-band" equipment is required to be reduced so as not to exceed that specified in the "narrow-band" standards, the Commission will not consider that interference caused to "wide-band" receivers constitutes "harmful interference".

While the Commission has reached the foregoing conclusions with respect to the application of the "narrow-band" technical standards in the continental United States, several comments pointed out that geographical separation of the territories and possessions from the continental United States appears to make unnecessary any immediate reduction in modulation frequency deviation of stations operating in these areas for the purpose of reducing adjacent-channel interference, because it is unlikely that the "split channels" will be needed in the Public Safety, Land Transportation, and Industrial Radio Services in such areas before 1963. The Commission concurs with that contention and concludes that it is in the public interest to provide that existing radio communication systems located wholly within any of the territories or possessions of the United States will be exempt from the requirements regarding reduction of frequency deviation provided by this action, until further order of the Commission. If at some future date, prior to November 1, 1963, it should become necessary to re-examine the situation in this regard as a result of interference situations which develop in the intervening period, the Commission may, at that time, extend those requirements to the areas or in the services where found necessary.

4. *Summary.* In summary, the Commission has decided that it is in the public interest to:

(1) Make "split-channels" in the 25–50 and 152–162 Mc bands available for immediate assignment in the Public Safety, Industrial and Land Transportation Radio Services upon the effective date of this action when not already so available; Provided that, in the Public Safety Radio Service, the "split-channels" will be assigned prior to November 1, 1963, only where the application for such assignment is accompanied by a satisfactory engineering report indicating that harmful interference will not be caused to the operation of existing stations or is accompanied by a statement certifying that all licensees of stations authorized to operate within 30 kc of the requested frequency and located within 75 miles of the proposed station location have concurred with the requested assignment.

(2) Require that all radio communication systems first authorized subsequent to the effective date of this action in the Public Safety, Industrial or Land Transportation Radio Services for operation in the 25–50 and 152–162 Mc bands, utilize only equipment which meets the "narrow-band" technical standards established in Docket No. 11253. The foregoing requirement will apply to the transmitters utilized in the radio communication system of any new licensee and to the transmitters utilized in the system of any previous licensee proposing to be operated on a frequency or in an area not previously authorized except as indicated below. It will not apply to the equipment of a licensed radio communication system authorized prior to the effective date of this action when that system is required to move to a different frequency due to the reallocation of the frequency previously assigned, provided the deviation of the transmitters of such equipment is immediately reduced to the point that it does not exceed the deviation (±5 kc) specified in the "narrow-band" technical standards.

(3) Specify that, in all cases where the Commission's rules governing the particular services involved require frequency coordination, the assignment of any frequency in the 25–50 or 152–162 Mc bands, including "split-channels", may be made only when coordination of the frequency selection has been effected with respect to all stations in the same or other services located in the same area and authorized to operate within 30 kc of the requested frequency or frequencies.

(4) Require that the frequency deviation of all transmitters in the Industrial and Land Transportation Radio Services, operated on frequencies in the 25–50 or 152–162 Mc bands, be reduced to the point where it does not exceed the deviation specified in the "narrow-band" technical standards (±5 kc) not later than six months from the effective date of this action, and that the frequency deviation of all transmitters in the Public Safety Radio Services, operated on frequencies in the 25–50 or 152–162 Mc bands, be reduced to the same figure not later than two years from the effective date of this action.

(5) Reaffirm that, on and after November 1, 1963, the equipment of all stations in the Public Safety, Industrial, and Land Transportation Radio Services, operated on frequencies in the 25–50 or 152–162 Mc bands, must meet all requirements of the "narrow-band" technical standards prescribed in Docket No. 11253.

(6) Exempt from the requirements of paragraphs (2) and (4) above, until further order of the Commission but not beyond November 1, 1963, the transmitters of all radio communication systems in the Public Safety, Industrial or Land Transportation Radio Services operated on frequencies in the 25–50 or 152–162 Mc bands at locations wholly within the limits of one or more of the territories or possessions of the United States.

Authority for the amendments of Parts 10, 11 and 16 of the Commission's rules ordered hereby is contained in sections 4 (i) and 303 of the Communications Act of 1934, as amended.

In accordance with the foregoing: *It is ordered*, That effective August 1, 1958, Parts 10, 11 and 16 of the Commission's rules, Public Safety, Industrial and Land Transportation Radio Services are amended to conform with the foregoing conclusions. Formal codification of these amendments will be accomplished by subsequent order of the Commission.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154)

Adopted: June 26, 1958.

Released: June 30, 1958.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 58-5116; Filed, July 2, 1958; 8:53 a. m.]